

TENTATIVE RULINGS for LAW and MOTION
August 27, 2026

Pursuant to Yolo County Local Rules, the following tentative rulings will become the order of the court unless, by 4:00 p.m. on the court day before the hearing, a party requests a hearing and notifies other counsel of the hearing. To request a hearing, you must contact the clerk of the department where the hearing is to be held. Copies of the tentative rulings will be posted on Yolo Court's Website, at www.yolo.courts.ca.gov. If you are scheduled to appear and there is no tentative ruling in your case, you should appear as scheduled.

Telephone number for the clerk in Department Thirteen	(530) 406-6777
Telephone number for the clerk in Department Fourteen	(530) 406-6800

TENTATIVE RULING

Case: **Bair v. Bair**
 Case No. CV2026-0746

Hearing Date: **August 27, 2026** **Department Fourteen** **9:00 a.m.**

Justin C. Lowenthal of Lowenthal APC's unopposed motion to be relieved as counsel for plaintiff Debbie A. Bair is **GRANTED**. (Cal. Rules of Court, rule 3.1362.)

The notice of motion does not provide notice of this Court's tentative ruling system as required by Local Rule 11.2(b). Counsel is ordered to notify the opposing party or parties immediately of the tentative ruling system.

If no hearing is requested, and no party appears at the hearing, **this tentative ruling is not effective until moving counsel files a proof of service with the Court showing service of a copy of the signed order on the client.** (Cal. Rules of Court, rule 3.1362(e).) No further order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

TENTATIVE RULING

Case: **Davis Hospitality Fund, LP v. Royal Ganesh, LLC et al.**
Case No. CV2025-0257

Hearing Date: **August 27, 2026** **Department Fourteen** **9:00 a.m.**

Motion to compel documents from third parties:

As an initial matter, the Court notes that plaintiff Davis Hospitality Fund, LP's ("plaintiff") notice of motion to compel production of documents from third parties Beidi Zheng ("Zheng") and Christopher Chambers ("Chambers") states that it is being brought pursuant to Code of Civil Procedure section 2031.310. (Notice of motion, p. 1 [filed 10/15/25].) Because plaintiff's motion seeks to compel the production of business records specified in a deposition subpoena served on nonparty deponent Chambers, the Court construes plaintiff's motion as being brought pursuant to Code of Civil Procedure section 2025.480. (See *Sole Energy Co. v. Petrominerals Corp.* (2005) 128 Cal.App.4th 187, 193 [the nature of a motion is determined by the nature of the relief sought, not by the label attached to it].)

Plaintiff's motion to compel production of documents from third parties Zheng and Chambers is **GRANTED IN PART**. (Code Civ. Proc. §§ 2017.010, 2025.480, subd. (a).)

By **October 1, 2026**, Chambers shall:

(1) conduct a diligent search for:

- login and password information for Zheng's work e-mail account (beidi.zheng@aaacrc.com);
- the name of the domain host for aaacrc.com; and
- e-mails and/or files saved by Zheng that are responsive to plaintiff's request for production of documents ("RPD") dated between January 1, 2015, and June 1, 2023; and

(2) produce all materials in Chambers' actual possession that are responsive to plaintiff's RPD dated between January 1, 2015, and June 1, 2023.

The Court notes that a protective order was entered in this case on August 1, 2025.

Chambers shall file and serve a declaration regarding his search efforts by **October 8, 2026**.

The notice of motion does not provide notice of this Court's tentative ruling system as required by Local Rule 11.2(b). Counsel for moving party, or the moving party if unrepresented by counsel, is ordered to notify the opposing party or parties immediately of the tentative ruling system.

If no hearing is requested, and no party appears at the hearing, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

Motion to compel production of documents:

Based on the parties' joint statement re discovery dispute, plaintiff's amended motion to compel production of documents (filed September 24, 2025) is **CONTINUED** to **October 13, 2026**, at 9:00 a.m. in Department Fourteen.

The parties are **DIRECTED** to file with the Court a joint statement regarding the status of defendants' responses to the pending discovery requests and the remaining issues in plaintiff's motion by no later than **September 29, 2026**.

If there are no remaining issues, plaintiff is **DIRECTED** to request that the October 13, 2026, hearing be vacated.

Motion to compel discovery responses:

The Court notes that plaintiff's amended motion to compel discovery responses (filed September 24, 2025) was withdrawn by plaintiff as noted in the parties February 27, 2026, joint statement re discovery motions pursuant to minute order. (Joint Statement, p.3 [2/27/26]; Minute Order [3/10/26].) No renewed motion as to this request for discovery has been filed.

TENTATIVE RULING

Case: Jane Doe v. City of West Sacramento
Case No. CV2026-1525

Hearing Date: August 27, 2026 **Department Thirteen** **9:00 a.m.**

Plaintiff's motion to proceed under pseudonym:

Plaintiff Jane Doe's unopposed renewed motion to proceed under pseudonym Jane Doe is **GRANTED**. (Cal. Rules of Court, rule 2.550; *Department of Fair Employment & Housing v. Superior Court*, (2022) 82 Cal.App.5th 105, 110; *Roe v. Smith*, (2025) 116 Cal.App.5th 227, 239; *Doe v. Lincoln Unified School District* (2010) 188 Cal.App.4th 758, 767.) The Court finds that plaintiff's need for anonymity outweighs any prejudice to the opposing party and the public's interest in knowing the party's identity. (*Doe, supra*, 188 Cal.App.4th 758, 767.) The risk of harm to plaintiff compels this conclusion. (Doe decl., ¶¶ 1-14; Parmely decl., ¶¶ 1-11.) Further, the Court finds that the use of a pseudonym, redacting only plaintiff's identity, is narrowly tailored to serve the overriding privacy interests and that there is no less restrictive means of achieving the overriding interests. (*Santa Ana Police Officers Association v. City of Santa Ana* (2025) 109 Cal.App.5th 296, 307; Parmely decl., ¶ 7.)

The notice of motion does not provide notice of this Court's tentative ruling system as required by Local Rule 11.2(b). Counsel for moving party, or the moving party if unrepresented by counsel, is ordered to notify the opposing party or parties immediately of the tentative ruling system.

If no hearing is requested, and no party appears at the hearing, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

Plaintiff's motion to file documents under seal:

Plaintiff Jane Doe's unopposed motion to file documents under seal is **GRANTED**. (Cal. Rules of Court, rule 2.550, 2.551.) The Court finds that the facts establish: (1) there exists an overriding interest that overcomes the right of public access to the record; (2) the overriding interest supports sealing the record; (3) a substantial probability exists that the overriding interest will be prejudiced if the record is not sealed; (4) the proposed sealing is narrowly tailored; and (5) no less restrictive means exist to achieve the overriding interest. (Cal. Rules of Court, rule 2.551(d); Doe decl., ¶¶ 1-16.)

Specifically, a person's medical history, including psychological records, falls within the zone of informational privacy protected by the state and federal Constitutions. (*Oiye v. Fox* (2012) 211 Cal.App.4th 1036, 1068.) Further, plaintiff shows that there is a substantial probability that the overriding interest will be prejudiced if the record is not sealed as, "[p]ublic disclosure of the medical documents would expose my private medical and psychological information to individuals who have no involvement in the litigation and would cause significant emotional distress." (Doe decl., ¶ 7.) Finally, the proposed sealing is narrowly tailored and no less restrictive means exist to achieve the overriding interest as public disclosure of plaintiff's "personally identifying information in court records concerning these events is likely to cause

substantial psychological harm, increase the risk of traumatization, and interfere with her ongoing treatment and recovery.” (Parmely decl., ¶ 5.)

Accordingly, the Court **ORDERS** the following be filed under seal: (1) Plaintiff’s treating mental health provider declarations and any attached confidential mental health exhibits submitted in support of plaintiff’s renewed motion to proceed under pseudonym and to file documents under seal; and (2) Plaintiff’s declarations filed in support of her motion to proceed under pseudonym and her motion to file documents under seal.

The notice of motion does not provide notice of this Court’s tentative ruling system as required by Local Rule 11.2(b). Counsel for moving party, or the moving party if unrepresented by counsel, is ordered to notify the opposing party or parties immediately of the tentative ruling system.

If no hearing is requested, and no party appears at the hearing, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

TENTATIVE RULING

Case: **Sierra Northern Railway v. California Department of Water
Resources**

Case No. CV2022-0479

Hearing Date: **August 27, 2026** **Department Fourteen** **9:00 a.m.**

Parties are **DIRECTED TO APPEAR.**

TENTATIVE RULING

Case: **Tausig v. City of West Sacramento**
Case No. CV2024-3068

Hearing Date: **August 27, 2026** **Department Fourteen** **9:00 a.m.**

Defendant Berliner Seilfabrik Play Equipment Corporation's demurrer to plaintiff Riley Tausig, a minor by and through her GAL Melissa Tausig's ("plaintiff") First Amended Complaint ("FAC") is **SUSTAINED WITHOUT LEAVE TO AMEND**. (Code Civ. Pro., § 430.10, subd. (e).) Plaintiff's FAC does not state facts sufficient to constitute a cause of action for violation of California Government Code section 835 because it does not allege that defendant is a public entity. (Gov. Code, §§ 835, 811.2; see also Opposition, p. 2.) Additionally, plaintiff has not shown how supplying the necessary factual allegations in an amendment may cure the defect. (*City of Stockton v. Superior Court* (2007) 42 Cal.App.4th 730, 748.)

The notice of demurrer does not provide notice of this Court's tentative ruling system as required by Local Rule 11.2(b). Counsel for demurring party, or the demurring party if unrepresented by counsel, is ordered to notify the opposing party or parties immediately of the tentative ruling system.

If no hearing is requested, and no party appears at the hearing, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

TENTATIVE RULING

Case: USE Credit Union v. Vidales
Case No. CV2021-1283

Hearing Date: August 27, 2026 **Department Thirteen** **9:00 a.m.**

The Court declines to consider: (1) defendants Mark E. Vidales and Catherine M. Vidales' evidentiary objections to declaration of Karel Rocha (filed August 13, 2026); and (2) defendants' reply (filed August 13, 2026). Based on the initial hearing date (June 25, 2026), these documents are untimely filed. (Code Civ. Proc., § 1005, subd. (b); Cal. Rules of Court, rule 3.1300(d); *Rancho Mirage Country Club Homeowners Assn. v. Hazelbaker* (2016) 2 Cal.App.5th 252, 262 [stating that "a trial court has broad discretion to accept or reject late-filed papers"].)

Defendants' motion to tax costs is **GRANTED IN PART**. (Code Civ. Proc., § 685.070, subd. (c).) "If the items appearing in a cost bill appear to be proper charges, the burden is on the party seeking to tax costs to show that they were not reasonable or necessary. On the other hand, if the items are properly objected to, they are put in issue and the burden of proof is on the party claiming them as costs." (*Ladas v. California State Auto. Assn.* (1993) 19 Cal.App.4th 761, 774, citations omitted.) As to the "other: Misc. Provisions: 08/12/24-04/17/26" entry in plaintiff USE Credit Union's memorandum of costs after judgment (filed May 19, 2026), the Court finds that defendants have properly objected to this entry and plaintiff has not justified this cost. (*Ibid.*)

As to defendants' motion to tax attorney's fees (item 7), this request is denied. Although attorney's fees incurred in enforcing a judgment may be sought by motion, a motion is not required if otherwise timely. (Code Civ. Proc., § 685.070; *Carnes v. Zamani* (2007) 488 F.3d 1057, 1060 ["The judgment creditor may seek to recover attorney fees incurred in enforcing a judgment by either filing a memorandum of costs or by serving a noticed motion"].)

In all other respects, defendants have failed to show that their assert grounds preclude plaintiff from recovering all or some of its costs. (Code Civ. Proc., §§ 680.240, 685.040, Defendants' decl., ¶ 3, Exhibit B; Rocha decl., ¶ 20.)

Therefore, the Court taxes plaintiff's costs in the amount of **\$1,048.20**.

The notice of motion does not provide notice of this Court's tentative ruling system as required by Local Rule 11.2(b). Counsel for moving party, or the moving party if unrepresented by counsel, is ordered to notify the opposing party or parties immediately of the tentative ruling system.

If no hearing is requested, and no party appears at the hearing, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.